

Analysis:

This motion was filed on 10-28-25. The Notice of Motion states that the motion is brought by KPRS Construction Services. (Mtn., p. 2.) However, the memorandum of points and authorities refers to IDIL as the moving party. (Mtn., pp. 3-8.) The next document, a declaration of Carlson, never mentions IDIL. Instead, it appears to be designed to support a motion by KPRS. Similarly, the separate statement states that it supports the motion of KPRS. The proposed order asks for summary judgment in favor of only IDIL.

Given the less-than-careful drafting of the motion, it is possible that the plaintiff was confused as to the moving party and failed to oppose that motion as a result of that confusion rather than as a result of an intentional decision not to oppose a motion by IDIL. The plaintiff's counsel shall be prepared to discuss the reason for the plaintiff's failure to oppose this motion and whether plaintiff is willing to stipulate to the motion being deemed one for IDIL and to the motion being granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407078	PATTON vs NISSAN NORTH AMERICA, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS

Tentative Ruling:

The plaintiffs' counsel's motion to be relieved as the plaintiffs' attorney of record is denied.

Analysis:

The proof of service on the two plaintiffs has not been filed. They were submitted to but rejected by the clerk's office.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505270	ZARATE vs VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FURTHER DISCOVERY RESPONSES

Tentative Ruling:

The plaintiffs' motion to compel further responses to its request for production of documents is granted as follows:

The defendant shall serve and produce all OSI and SAGA documents requested no later than August 14, 2026.

No later than August 14, 2026, the defendant shall supplement its responses by producing a privilege log supporting all documents the production of which are being withheld on the ground of attorney-client privilege. Any objections not supported by the privilege log are overruled.

Analysis:

At the initial hearing on 6-14-26, the Court ordered the parties to meet and confer regarding Nos. 1-11, 13-29, and 30, and thereafter to file a joint statement regarding any disputes that remain.

The joint statement states that the defendant agreed in March to provide documents regarding Other Similar Incidents and SAGA warranty claims in May and continues to represent that it will provide those documents now, but still has not done so. The defense says that its agreement to provide them renders this issue moot. Until those documents are produced rather than simply promised, the issue is not moot. The defendant objected to Nos. 14-30 on the ground of attorney-client privilege, but has not produced a privilege log. The defendant continues to assert that privilege, but it still has not produced a privilege log.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506485	WU vs BRINKER RESTAURANT CORPORATION	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The defendant's unopposed motion to strike portions of the First Amended Complaint is granted without leave to amend.

Analysis

The plaintiff did not oppose the motion and has proposed to amend the complaint by, inter alia, omitting all allegations regarding punitive or exemplary damages. (See motion for leave to file second amended complaint, pp. 2 & 9.) Since those allegations are being deleted, the instant motion is granted without leave to amend.